

CIVIL ACTION COVER SHEET	DOCKET NUMBER 2381 CV 00130	Trial Court of Massachusetts The Superior Court
PLAINTIFF(S): Jestina Weems-Rosendoff 95 Dickon CT Brooklyn, NY 11229	COUNTY Middlesex	
ATTORNEY:	DEFENDANT(S): Lowell Polk, Medical Examiner 50 Arcand Dr, Lowell MA 01852 55 Lake Avenue North, Woburn MA 01801 15 Commonwealth Ave Woburn MA 01801	
BBO:		
CODE NO B08/B06	TYPE OF ACTION AND TRACK DESIGNATION (see reverse side) TYPE OF ACTION (specify) Wrongful Death/Malpractice TRACK	HAS A JURY CLAIM BEEN MADE? ☒ YES ☐ NO
Is there a claim under G.L. c. 93A? ☐ YES ☒ NO		
Is this a class action under Mass. R. Civ. P. 23? ☒ YES ☐ NO		
STATEMENT OF DAMAGES PURSUANT TO G.L. c. 212, § 3A		
The following is a full, itemized and detailed statement of the facts on which the undersigned plaintiff or plaintiff's counsel relies to determine money damages. For this form, disregard double or treble damage claims; indicate single damages only.		
TORT CLAIMS (attach additional sheets as necessary)		
A. Documented medical expenses to date:	FILED IN THE OFFICE OF THE CLERK OF COURTS FOR THE COUNTY OF MIDDLESEX JAN 17 2023 [Signature] CLERK	
1. Total hospital expenses		\$
2. Total doctor expenses		\$
3. Total chiropractic expenses		\$
4. Total physical therapy expenses		\$
5. Total other expenses (describe below)		\$
B. Documented lost wages and compensation to date		\$5,026.00
C. Documented property damages to date		\$
D. Reasonably anticipated future medical and hospital expenses		\$103,583
E. Reasonably anticipated lost wages		\$
F. Other documented items of damages (describe below)		\$169,032
		1,950,108.00
G. Briefly describe plaintiff's injury, including the nature and extent of injury: Death		TOTAL (A-F): \$2,903,591.00
CONTRACT CLAIMS (attach additional sheets as necessary)		
☐ This action includes a claim involving collection of a debt incurred pursuant to a revolving credit agreement. Mass. R. Civ. P. 8.1(a).		
Provide a detailed description of claim(s):		TOTAL: \$
RELATED ACTIONS: Please provide the case number, case name, and county of any related actions pending in the Superior Court.		Date: 1-17-2023
CERTIFICATION PURSUANT TO S.J.C. RULE 1-18		
Rule 1-18) requiring that I provide my clients with information about court-connected dispute resolution services and discuss with them the advantages and disadvantages of the various methods of dispute resolution.		
		Date:

CIVIL TRACKING ORDER (STANDING ORDER 1- 88)		DOCKET NUMBER 2381CV00130	Trial Court of Massachusetts The Superior Court 
CASE NAME: Jestina Weems-Rosenduft vs. Lowell Police Department et al		Michael A. Sullivan, Clerk of Court Middlesex County	
TO: Office of Chief Medical Examiner  Worcester, MA 01655		 Middlesex Superior - Lowell  Lowell, MA 01852	

TRACKING ORDER - A - Average

You are hereby notified that this case is on the track referenced above as per Superior Court Standing Order 1-88. The order requires that the various stages of litigation described below must be completed not later than the deadlines indicated.

STAGES OF LITIGATION

DEADLINE

	SERVED BY	FILED BY	HEARD BY
Service of process made and return filed with the Court		04/18/2023	
Response to the complaint filed (also see MRCP 12)		05/17/2023	
All motions under MRCP 12, 19, and 20	05/17/2023	06/16/2023	07/17/2023
All motions under MRCP 15	03/12/2024	04/11/2024	04/11/2024
All discovery requests and depositions served and non-expert depositions completed	01/06/2025		
All motions under MRCP 56	02/05/2025	03/07/2025	
Final pre-trial conference held and/or firm trial date set			07/07/2025
Case shall be resolved and judgment shall issue by			01/16/2026

The final pre-trial deadline is not the scheduled date of the conference. You will be notified of that date at a later time.
Counsel for plaintiff must serve this tracking order on defendant before the deadline for filing return of service.
 This case is assigned to

DATE ISSUED	ASSISTANT CLERK	
01/17/2023	Amanda Rowan	